

Smt. Meenakshi.T vs Sri. Chandrashekar on 19 April, 2023

KABC040046332016

Presented on : 25-04-2016

Registered on : 25-04-2016

Decided on : 19-04-2023

Duration : 6 years, 11 months, 24 days

IN THE COURT OF THE METROPOLITAN MAGISTRATE,
TRAFFIC COURT - II, AT BENGALURU

DATED THIS 19 TH DAY OF APRIL 2023.

PRESENT : Smt.HAMSA V., B.Sc(Seri)., LL.B.,
C/c. M.M.T.C-II, BENGALURU.

Crl.Misc.No.62/2016

PETITIONER	Smt. Meenakshi.T, W/o Chandrashekara, Aged about 48 years, R/at : No.26, 6 th Cross, Kenchenahalli, Rajarajeshwari Nagara, Bengaluru- 560 098. (By Sri. K.S., Adv.,)
RESPONDENT	V/s Sri. Chandrashekar, S/o Narayanappa, Aged about 38 years, R/at : No.226, Old No.50/2, Valagerehalli, Bengaluru - 560 060. (By Sri. M.M., Adv.,)

2

Crl.Misc.No.62/2016

J U D G M E N T

The petitioner has filed this petition seeking for protection order, residence order, compensation order, maintenance order and other allied reliefs from the respondent in the interest of justice and equity.

2. The case of the petitioner in brief is as

under;

It is the contention of the petitioner that she is the wife of respondent and their marriage was solemnized according to Hindu rites and customs on 21.02.2011 at Dharmasthala temple. The petitioner submits that she was earlier married to one Basavaraj who was working in BHEL and out of the wedlock she has three daughters and on 14.06.2001 he got expired. Later the petitioner married the respondent at the above said place. After the marriage both petitioner and respondent were residing at Kenchenahalli and the 1st wife of the respondent used to visit their house and also petitioner used to visit the respondent's 1st wife's house. The respondent took Rs.8,00,000/- from the petitioner and did not return the same. When asked the petitioner was physically and verbally abused in unparliamentary language. The

3

Crl.Misc.No.62/2016

petitioner contends that the respondent and the 1st wife of respondent threatened the petitioner to take back the criminal case against the respondent. The petitioner further submits that on 10.03.2016 the respondent again threatened the petitioner and abused in filthy language and forced to withdraw the criminal case and to forget Rs.8,00,000/-. Hence, the petitioner has filed this petition seeking monthly maintenance of Rs.15,000/-, compensation of Rs.10,00,000/-, legal expenses of Rs.25,000/- and to direct the respondent to return Rs.8,00,000/- which was taken from the petitioner. Hence, this petition

3. After the registration of petition, notice has been issued to the respondent and on appearance through his advocate the respondent has filed detailed statement of objection. Wherein he has denied the relationship with the petitioner. He denied all the averments of petition and specifically denied the marriage with the petitioner. The respondent further submits that the respondent married one Manjula on 21.04.2005 as per Hindu rites and customs and out of his wedlock they have 2

4

Crl.Misc.No.62/2016

children. As the respondent is working in BMTC the petitioner threatened the respondent if her demands for ransoms is not met she would filed frivolous cases against the respondent and his

family members. The respondent contends that the petitioner has created and concocted the story. Hence, prays to dismiss the petition.

4. The petitioner in order to prove her case examined herself as PW.1 and got marked 9 documents as Ex.P.1 to 9. However she was cross examined in part and thereafter even after giving sufficient opportunity she has failed to tender herself for cross examination. On the other hand, the respondent examined himself as RW.1 and got marked 1 document as Ex.R.1. The petitioner was given sufficient opportunity to cross examine the the respondent but she failed to do so. Hence the cross examination of the respondent was taken as nil.

5. Heard the arguments and perused the case papers. The following points that arises for my consideration are as under;

5

Crl.Misc.No.62/2016

1. Whether the Petitioner proves that, she has been in domestic relationship with the Respondent ?
- 2.Whether the Petitioner proves that she has been subjected to domestic violence by the respondent ?
3. Whether the petitioner proves that she is entitled for the reliefs as sought in the petition?
- 4.What order?

6. My answer to the above points are as under;
- Point No.1 : In the Negative;
 - Point No.2 : In the Negative;
 - Point No.3 : In the Negative;
 - Point No.4 : As per final order for the following;

R E A S O N S

7. POINT No.1 & 2 : These two points are

taken together as they are interlinked with each other and to avoid repetition. The case of both the parties have already been stated above, hence not repeated here.

6

Crl.Misc.No.62/2016

8. In this case the relationship between the petitioner and the respondent is in dispute. Both of them have led evidence and got marked the documents. As the law presumes in favour of marriage and against concubinage when a man and woman have co-habited continuously for long time. But the presumption can be rebutted by leading unimpeachable evidence.

9. In this case it is necessary to examine whether the petitioner is an aggrieved person and was in domestic relationship with the respondent and whether both of them had lived in the shared household together. As per S.2(f) of PWDV Act 2005 it refers five categories of relationship such as related by i) Consanguinity ii) Marriage, iii) Relationship in the nature of marriage, iv) Adoption, and v) Family members living together as a joint family.

10. In the present case the petitioner has to prove that she was in domestic relationship with the respondent. If the petitioner proves that her relationship with the respondent is in the nature of marriage it is sufficient to presume that both

7

Crl.Misc.No.62/2016

parties had lived together in a relationship in the nature of marriage.

11. As far as relationship of the petitioner with the respondent is concerned, it is specific case of the petitioner that she married respondent on 21.02.2011 at Dharmastala. In order to prove the same the petitioner has examined as PW.1 and got marked Ex.P.1 to 9. Thereafter the petitioner was subjected to partial cross examination. As the petitioner did not appear for her cross-examination, the matter was posted for respondent's evidence. The petitioner has produced joint photographs of petitioner and respondent to prove her marriage with the respondent. Though her contention is that she married respondent at Dharmastala she has not produced any document in this regard. Though PW.1 has produced the joint photographs which

is the secondary evidence she has not produced any negatives of the said photographs. Mere production of the document and marking it cannot prove the relationship of PW.1 with the respondent. PW.1 has produced a CD which contains the photographs produced at Ex.P.3.

8

Crl.Misc.No.62/2016

PW.1 has not produced any certificate in terms of Sec.65B in respect of the CD at Ex.P.3. Hon'ble Supreme Court in the Anwar P.V. V/s P.K.Basheer(2014) 10 SCC 473 has held that " An electronic record by way of secondary evidence shall not be admitted in evidence until the requirements under Sec.65-B are satisfied. Thus, in the case of CD, VCD, chip etc the same shall be accompanied by the certificate in terms of Sec.65.B obtained at the time of taking the documents, without which the secondary evidence pertaining to the electronic record is inadmissible.

12. In the present case PW.1 has submitted the CD which is marked as Ex.P.3. Without complying the Sec.65B of Indian Evidence Act. Applying the ratio laid down in the above case the CD at Ex.P.3 is not admissible. Hence, the petitioner has failed to establish the relationship with the respondent through Ex.P.1 to 3.

13. PW.1 has produced rental agreement at Ex.P.4 in order to establish her contention that, the petitioner and respondent were residing in the said house after marriage. As per petitioner marriage took place in February 2011 and soon

9

Crl.Misc.No.62/2016

after they moved to Kenchenahalli. She has produced Ex.P.4 in order to prove the same. On perusal of Ex.P.4 the rental agreement is in the name of petitioner and the date on the said document is on 16.06.2012 but as per the petitioner after marriage they moved to the said house. In cross she admits that she is not aware of date, month and year. In cross she deposed that the respondent has affixed his signature to Ex.P.4. But the respondent has denied the signature. However, Sec.73 of Indian Evidence Act of 1872, empowers the court to compare the disputed signatures with the admitted signatures. On comparing the same this court has observed that the signature of the respondent in the

objections, vakalath are identical where as signature as Ex.P.4 completely differs from the same. Hence this court is of the view that the signature found on Ex.P-4 is not of the respondent. Inspite of giving sufficient opportunity to the petitioner she has not taken any efforts to prove the signature on Ex.P-4.

14. PW.1 has produced Ex.P.5 outpatient card for having taken treatment at Gayathri

10

Crl.Misc.No.62/2016

Hospital but nowhere in the petition nor in her examination-in-chief nor in her arguments has explained about relevancy of the said document. Hence, the same is not considered.

15. Further, PW.1 has produced Ex.P.6 for having repaid the loan amount taken at Muthoot Finance. But she has failed to explain the purpose of the said loan. She has neither mentioned the same in her petition nor in her affidavit of chief examination or in arguments. Hence, the said document holds no water to the present case.

16. PW.1 has produced Ex.P.7 to 9 which is the FIR, charge sheet and complaint against the respondent for the offences punishable under Sec.498A and 506 (B) of IPC. It is pertinent to note that in Ex.P.8 the petitioner has herself admitted that respondent was already married at the time of the alleged marriage with her.

17. On the other hand, respondent himself has been examined as RW.1 wherein he has almost reiterated his objection averments. Apart from that he has specifically denied that the signature at Ex.P.4 is not his signature and he

11

Crl.Misc.No.62/2016

has produced a document which is the certified copy of judgment copy in CC No.8162/2013 which was filed against the respondent for the offences punishable under Sec.498A and 506(B) of IPC. After perusal of the same could has observed that Hon'ble court has acquitted the respondent as the prosecution has failed to prove the guilt without securing the witnesses before the court.

18. The learned counsel for the respondent during the course of arguments has argued that there is no marital relationship between the petitioner and respondent and there is no proof

provided by the petitioner for having married the respondent. However, it is pertinent to mention here that the petitioner in Ex.P.8 has herself admitted that respondent was married at the time of her alleged marriage with the respondent. If it is so, even for the sake of arguments if it considered that PW.1 and the respondent both belongs to Hindu religion then also their alleged marriage dated 21.02.2011 is a void marriage as the respondent has a living spouse at the time of said 2nd marriage. The Sec.5 of Hindu Marriage Act 1955 reads as follows;

12

Crl.Misc.No.62/2016

"5. Conditions for a Hindu marriage. A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:

- (i) neither party has a spouse living at the time of the marriage;
- (ii) at the time of the marriage, neither party
 - (a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or
 - (b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or
 - (c) has been subject to recurrent attacks of insanity
- (iii) the bridegroom has completed the age of 4 [twenty-one years] and the bride, the age of 5 [eighteen years] at the time of the marriage;
- (iv) the parties are not within the degrees of prohibited relationship unless the

13

Crl.Misc.No.62/2016

custom or usage governing each of them permits of a marriage between the two;

- (v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;"

19. On careful reading of Ex.P.8 and also

Sec.5 of Hindu Marriage Act, it appears that so called marriage of PW.1 with the respondent dated 21.02.2011 cannot be called as marriage for the reason that PW.1 knew regarding the survival of respondent's wife.

20. It is also pertinent to mention here that the petitioner was partly cross examined. Further the petitioner did not tender herself for cross-examination, neither she made any efforts to recall the stage. The conduct of the petitioner discloses that she has not approached the court with clean hands. Hence, an adverse inference can be drawn against the petitioner under Sec.114(g) of Indian Evidence Act that the case of the petitioner is not correct.

14

Crl.Misc.No.62/2016

21. At this juncture it is also pertinent to mention that citation reported in (1990) 3 SCC 573 between Vidhyadhar and Manikrao and another. The Hon'ble Apex Court at para 17 held that

"Where a party to the suit does not appear in the witness box and states his own case on oath and does not offer himself to be cross examined by the other side, a presumption would arise that, the case set up by him is not correct as has been held in a series of decisions passed by various High Courts and Privy Council beginning from the decision in Sardar Gurbakhsh Singh Vs. Grudial Singh. This was followed by the Lahore High Court in Ti Kirpa Singh Vs. Ajaipal Singh and the Bombay High Court in Martand Pandharinath Chaudhari Vs Radhabai Krishnarao Deshmukh. The Madhya Pradesh High Court in Gulla Kharagjit Carpenter Vs. Narsingh Nandkishore

15

Crl.Misc.No.62/2016

Rawat also followed the Privy Council decision in Sardar Gurbakhsh Singh case. The Allahabad High Court in Arjun Singh Vs Virendra Nath held that if a party abstains from entering the witness box, it would give raise to

an adverse inference against him. Similarly a division bench of the Punjab and Haryana High court in Bhahwan Dass Vs. Bhishan Chand drew a presumption under Section 114 of Indian Evidence Act, 1872 against the party who did not enter the witness box."

22. Since the petitioner failed to appear for further cross examination it is not safe to consider the entire case of the petitioner. Hence, by relying on the above decisions this court held that the petitioner has failed to prove that she has been legally wedded wife of the respondent and there existed domestic relationship between the petitioner and respondent. Hence, I answer the point Nos.1 and 2 in the negative.

16

Crl.Misc.No.62/2016

23. POINT No.3 : In view of the above discussions on point Nos.1 and 2 , this court is of the opinion that the petitioner is not an aggrieved person. The respondent herein cannot be termed as respondent as per the definition mentioned in the protection of women from Domestic Violence Act 2005. Hence , I answer Point No. 3 in the negative.

24. POINT No.4 :- In view of the materials placed before this court, pleadings, deposition and documentary evidence this court proceeds to pass the following:

ORDER

The	petition	filed	by	the
petitioner	under	Sec.12	of	The

Protection of Women from Domestic Violence Act, 2005 is hereby dismissed with cost of Rs.5,000/-.

Office is directed to furnish a copy of this order free of cost to the petitioner.

(Dictated to the Stenographer, transcript computerized by her, revised corrected and then pronounced by me in the open Court on this the 19th day of April 2023).

(HAMSA. V) C/C. MMTC-II, BENGALURU.

Crl.Misc.No.62/2016 ANNEXURE WITNESSES EXAMINED FOR THE PETITIONER:

PW.1 Meenakshi.T DOCUMENTS EXHIBITED FOR THE PETITIONER:

Ex.P.1& 2	Photographs
Ex.P.3	CD
Ex.P.4	Rental agreement
Ex.P.5	Out patient card
Ex.P.6	62 Pay-in-slips of Muthoot Finance

Ex.P.7 to 9 CC of FIR, Complaint, Chargesheet in Cr.No.253/12.

WITNESSES EXAMINED FOR THE RESPONDENT :

RW.1 Chandrashekar DOCUMENTS EXHIBITED FOR THE RESPONDENT :

Ex.R.1 CC of judgment in CC No.8162/2013 (HAMSA. V) C/C. MMTC-II, BENGALURU.